A Dialogue on Oratory

CORNELII TACITI DIALOGUS DE ORATORIBUS

Tacitus

translated by A. J. Church and W. J. Brodribb (1877)

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1

You often ask me, Justus Fabius, how it is that while the genius and the fame of so many distinguished orators have shed a lustre on the past, our age is so forlorn and so destitute of the glory of eloquence that it scarce retains the very name of orator. That title indeed we apply only to the ancients, and the clever speakers of this day we call pleaders, advocates, counsellors, anything rather than orators. To answer this question of yours, to undertake the burden of so serious an inquiry, involving, as it must, a mean opinion either of our capacities, if we cannot reach the same standard, or of our tastes, if we have not the wish, is a task on which I should scarcely venture had I to give my own views instead of being able to reproduce a conversation among men, for our time, singularly eloquent, whom, when quite a youth, I heard discussing this very question. And so it is not ability, it is only memory and recollection which I require. I have to repeat now, with the same divisions and arguments, following closely the course of that discussion, those subtle reflections which I heard, powerfully expressed, from men of the highest eminence, each of whom assigned a different but plausible reason, thereby displaying the peculiarities of his individual temper and genius. Nor indeed did the opposite side lack an advocate, who, after much criticism and ridicule of old times, maintained the superiority of the eloquence of our own days to the great orators of the past.

2

It was the day after Curiatius Maternus had given a reading of his Cato, by which it was said that he had irritated the feelings of certain great personages, because in the subject of his tragedy he had apparently forgotten himself and thought only of Cato. While all Rome was discussing the subject, he received a visit from Marcus Aper and Julius Secundus, then the most famous men of genius at our bar.

Of both I was a studious hearer in court, and I also would follow them to their homes and when they appeared in public, from a singular zeal for my profession, and a youthful enthusiasm which urged me to listen diligently to their trivial talk, their more serious debates, and their private and esoteric discourse. Yet many ill-naturedly thought that Secundus had no readiness of speech, and that Aper had won his reputation for eloquence by his cleverness and natural powers, more than by training and culture. As a fact, Secundus had a pure, terse, and a sufficiently fluent style, while Aper, who was imbued with learning of all kinds, pretended to despise the culture which he really possessed. He would have, so he must have thought, a greater reputation for industry and application, if it should appear that his genius did not depend on any supports from pursuits alien to his profession.

3

So we entered the study of Maternus, and found him seated with the very book which he had read the day before, in his hands. Secundus began. Has the talk of ill-natured people no effect in deterring you, Maternus, from clinging to your Cato with its provocations? Or have you taken up the book to revise it more carefully, and, after striking out whatever has given a handle for a bad interpretation, will you publish, if not a better, at least a safer, Cato?

3

You shall read, was the answer, what Maternus owed it to himself to write, and all that you heard you will recognise again. Anything omitted in the Cato Thyestes shall supply in my next reading. This is a tragedy, the plan of which I have in my own mind arranged and formed. I am therefore bent on hurrying on the publication of the present book, that, as soon as my first work is off my hands, I may devote my whole soul to a fresh task.

3

It seems, said Aper, so far from these tragedies contenting you, that you have abandoned the study of the orator and pleader, and are

giving all your time to Medea and now to Thyestes, although your friends, with their many causes, and your clients from the colonies, municipalities, and towns, are calling you to the courts. You could hardly answer their demands even if you had not imposed new work on yourself, the work of adding to the dramas of Greece a Domitius and a Cato, histories and names from our own Rome.

4

This severity of yours, replied Maternus, would be quite a blow to us, had not our controversy from its frequency and familiarity become by this time almost a regular practice. You, in fact, never cease from abusing and inveighing against poets, and I, whom you reproach with neglect of my professional duties, every day undertake to plead against you in defence of poetry. So I am all the more delighted at the presence of a judge who will either forbid me for the future to write verses, or who will compel me by his additional authority to do what I have long desired, to give up the petty subtleties of legal causes, at which I have toiled enough, and more than enough, and to cultivate a more sacred and more stately eloquence.

5

For my part, said Secundus, before Aper refuses me as a judge, I will do as is usually done by upright and sensible judges, who excuse themselves in cases in which it is evident that one side has an undue influence with them. Who knows not that no one is nearer my heart from long friendship and uninterrupted intercourse than Saleius Bassus, an excellent man, as well as a most accomplished poet? Besides, if poetry is to be put on her defence, I know not a more influential defendant.

5

He may rest secure, said Aper, both Saleius Bassus himself, and anyone else who is devoted to the pursuit of poetry and the glory of song, if he has not the gift of pleading causes. But assuredly, as I have found an arbiter for this dispute, I will not allow Maternus to shelter himself behind a number of associates. I single him out for accusation before

you on the ground that, though naturally fittest for that manly eloquence of the orator by which he might create and retain friendships, acquire connections, and attach the provinces, he is throwing away a pursuit than which it is impossible to imagine one in our state richer in advantages, more splendid in its prospects, more attractive in fame at home, more illustrious in celebrity throughout our whole empire and all the world. If, indeed, what is useful in life should be the aim of all our plans and actions, what can be safer than to practise an art armed with which a man can always bring aid to friends, succour to strangers, deliverance to the imperilled, while to malignant foes he is an actual fear and terror, himself the while secure and intrenched, so to say, within a power and a position of lasting strength? When we have a flow of prosperity, the efficacy and use of this art are seen in the help and protection of others; if, however, we hear the sound of danger to ourselves, the breast-plate and the sword are not, I am well assured, a stronger defence on the battle-field than eloquence is to a man amid the perils of a prosecution. It is both a shield and a weapon; you can use it alike for defence and attack, either before a judge, before the senate, or before the emperor. What but his eloquence did Eprius Marcellus oppose the other day to the senators in their fury? Armed with this, and consequently terrible, he baffled the sagacious but untrained wisdom of Helvidius Priscus, which knew nothing of such encounters. Of its usefulness I say no more. It is a point which I think my friend Maternus will be the last to dispute.

6

I pass now to the pleasure derived from the orator's eloquence. Its delights are enjoyed not for a single moment, but almost on every day and at every hour. To the mind of an educated gentleman, naturally fitted for worthy enjoyments, what can be more delightful than to see his house always thronged and crowded by gatherings of the most eminent men, and to know that the honour is paid not to his wealth, his childlessness, or his possession of some office, but to himself? Nay, more; the childless, the rich, and the powerful often go to one who is

both young and poor, in order to intrust him with difficulties affecting themselves or their friends. Can there be any pleasure from boundless wealth and vast power equal to that of seeing men in years, and even in old age, men backed by the influence of the whole world, readily confessing, amid the utmost affluence of every kind, that they do not possess that which is the best of all? Again, look at the respectable citizens who escort the pleader to and from the court. Look at his appearance in public, and the respect shown him before the judges. What a delight it must be to rise and stand amid the hushed crowd, with every eye on him alone, the people assembling and gathering round him in a circle, and taking from the orator any emotion he has himself assumed. I am now reckoning the notorious joys of an orator, those which are open to the sight even of the uneducated; the more secret, known only to the advocate himself, are yet greater. If he produces a careful and well-prepared speech, there is a solidity and stedfastness in his satisfaction, just as there is in his style; if, again, he offers his audience, not without some tremblings at heart, the result of a fresh and sudden effort, his very anxiety enhances the joy of success, and ministers to his pleasure. In fact, audacity at the moment, and rashness itself, have quite a peculiar sweetness. As with the earth, so with genius. Though time must be bestowed on the sowing and cultivation of some plants, yet those which grow spontaneously are the more pleasing.

7

To speak my own mind, I did not experience more joy on the day on which I was presented with the robe of a senator, or when, as a new man, born in a far from influential state, I was elected quæstor, or tribune, or prætor, than on those on which it was my privilege, considering the insignificance of my ability as a speaker, to defend a prisoner with success, to win a verdict in a cause before the Court of the Hundred, or to give the support of my advocacy in the emperor's presence to the great freedmen themselves, or to ministers of the crown. On such occasions I seem to rise above tribunates, prætorships,

and consulships, and to possess that which, if it be not of natural growth, is not bestowed by mandate, nor comes through interest. Again, is there an accomplishment, the fame and glory of which are to be compared with the distinction of the orator, who is an illustrious man at Rome, not only with the busy class, intent on public affairs, but even with people of leisure, and with the young, those at least who have a right disposition and a worthy confidence in themselves? Whose name does the father din into his children's ears before that of the orator? Whom, as he passes by, do the ignorant mob and the men with the tunic oftener speak of by name and point out with the finger? Strangers too and foreigners, having heard of him in their towns and colonies, as soon as they have arrived at Rome, ask for him and are eager, as it were to recognise him.

8

As for Marcellus Eprius, whom I have just mentioned, and Crispus Vibius (it is pleasanter to me to cite recent and modern examples than those of a distant and forgotten past), I would venture to argue that they are quite as great men in the remotest corners of the world as at Capua or Vercellae, where they are said to have been born. Nor do they owe this to the three hundred million sesterces of the one, although it may seem that they must thank their eloquence for having attained such wealth. Eloquence itself is the cause. Its inspiration and superhuman power have throughout all times shown by many an example what a height of fortune men have reached by the might of genius. But there are, as I said but now, instances close at hand, and we may know them, not by hearsay, but may see them with our eyes. The lower and meaner their birth, the more notorious the poverty and the straitened means amid which their life began, the more famous and brilliant are they as examples to show the efficacy of an orator's eloquence. Without the recommendation of birth, without the support of riches, neither of the two distinguished for virtue, one even despised for the appearance of his person, they have now for many years been the most powerful men in the state, and, as long as it

suited them, they were the leaders of the bar. At this moment, as leading men in the emperor's friendship they carry all before them, and even the leading man himself of the State esteems and almost reverences them. Vespasian indeed, venerable in his old age and most tolerant of truth, knows well that while his other friends are dependent on what he has given them, and on what it is easy for him to heap and pile on others, Marcellus and Crispus, in becoming his friends, brought with them something which they had not received and which could not be received from a prince. Amid so much that is great, busts, inscriptions, and statues hold but a very poor place. Yet even these they do not disregard, and certainly not riches and affluence, which it is easier to find men denouncing than despising. It is these honours and splendours, aye and substantial wealth, that we see filling the homes of those who from early youth have given themselves to practice at the bar and to the study of oratory.

9

As for song and verse to which Maternus wishes to devote his whole life (for this was the starting-point of his entire argument), they bring no dignity to the author, nor do they improve his circumstances. Although your ears, Maternus, may loathe what I am about to say, I ask what good it is if Agamemnon or Jason speaks eloquently in your composition. Who the more goes back to his home saved from danger and bound to you? Our friend Saleius is an admirable poet, or, if the phrase be more complimentary, a most illustrious bard; but who walks by his side or attends his receptions or follows in his train? Why, if his friend or relative or even he himself stumbles into some troublesome affair, he will run to Secundus here, or to you, Maternus, not because you are a poet or that you may make verses for him; for verses come naturally to Bassus in his own home, and pretty and charming they are, though the result of them is that when, with the labour of a whole year, through entire days and the best part of the nights, he has hammered out, with the midnight oil, a single book, he is forced actually to beg and canvass for people who will condescend to be his

hearers, and not even this without cost to himself. He gets the loan of a house, fits up a room, hires benches, and scatters programmes. Even if his reading is followed by a complete success, all the glory is, so to say, cut short in the bloom and the flower, and does not come to any real and substantial fruit. He carries away with him not a single friendship, not a single client, not an obligation that will abide in anyone's mind, only idle applause, meaningless acclamations and a fleeting delight. We lately praised Vespasian's bounty, in giving Bassus four thousand pounds, as something marvellous and splendid. It is no doubt a fine thing to win an emperor's favour by talent; but how much finer, if domestic circumstances so require, to cultivate oneself, to make one's own genius propitious, to fall back on one's own bounty. Consider too that a poet, if he wishes to work out and accomplish a worthy result, must leave the society of his friends, and the attractions of the capital; he must relinquish every other duty, and must, as poets themselves say, retire to woods and groves, in fact, into solitude.

10

Nor again do even reputation and fame, the only object of their devotion, the sole reward of their labours, by their own confession, cling to the poet as much as to the orator; for indifferent poets are known to none, and the good but to a few. When does the rumour of the very choicest readings penetrate every part of Rome, much less is talked of throughout our numerous provinces? How few, when they visit the capital from Spain or Asia, to say nothing of our Gallic neighbours, ask after Saleius Bassus! And indeed, if any one does ask after him, having once seen him, he passes on, and is satisfied, as if he had seen a picture or a statue. I do not wish my remarks to be taken as implying that I would deter from poetry those to whom nature has denied the orator's talent, if only they can amuse their leisure and push themselves into fame by this branch of culture. For my part I hold all eloquence in its every variety something sacred and venerable, and I regard as preferable to all studies of other arts not

merely your tragedian's buskin or the measures of heroic verse, but even the sweetness of the lyric ode, the playfulness of the elegy, the satire of the iambic, the wit of the epigram, and indeed any other form of eloquence. But it is with you, Maternus, that I am dealing; for, when your genius might carry you to the summit of eloquence, you prefer to wander from the path, and though sure to win the highest prize you stop short at meaner things. Just as, if you had been born in Greece, where it is an honour to practise even the arts of the arena, and if the gods had given you the vigour and strength of Nicostratus, I should not suffer those giant arms meant by nature for combat to waste themselves on the light javelin or the throwing of the quoit, so now I summon you from the lecture-room and the theatre to the law court with its pleadings and its real battles. I do this the more because you cannot even fall back on the refuge which shelters many, the plea that the poet's pursuit is less liable to give offence than that of the orator. In truth, with you the ardour of a peculiarly noble nature bursts forth, and the offence you give is not for the sake of a friend, but, what is more dangerous, for the sake of Cato. Nor is this offending excused by the obligation of duty, or by the fidelity of an advocate, or by the impulse of a casual and sudden speech. You have, it seems, prepared your part in having chosen a character of note who would speak with authority. I foresee your possible answer. Hence, you will say, came the decisive approval; this is the style which the lecture-room chiefly praises, and which next becomes the world's talk. Away then with the excuse of quiet and safety, when you are deliberately choosing a more doughty adversary. For myself, let it be enough to take a side in the private disputes of our own time. In these, if at any time necessity has compelled us on behalf of an imperilled friend to offend the ears of the powerful, our loyalty must be approved, our liberty of speech condoned.

11

Aper having said this with his usual spirit and with vehemence of utterance, Maternus replied good-humouredly with something of a

smile. I was preparing to attack the orators at as great length as Aper had praised them, for I thought that he would leave his praises of them and go on to demolish poets and the pursuit of poetry, but he appeased me by a sort of stratagem, granting permission to those who cannot plead causes, to make verses. For myself, though I am perhaps able to accomplish and effect something in pleading causes, yet it was by the public reading of tragedies that I first began to enter the path of fame, when in Nero's time I broke the wicked power of Vatinius by which even the sanctities of culture were profaned, and if at this moment I possess any celebrity and distinction I maintain that it has been acquired more by the renown of my poems than of my speeches. And so now I have resolved to throw off the yoke of my labours at the bar, and for trains of followers on my way to and from the court and for crowded receptions I crave no more than for the bronzes and busts which have invaded my house even against my will. For hitherto I have upheld my position and my safety better by integrity than by eloquence, and I am not afraid of having ever to say a word in the senate except to avert peril from another.

12

As to the woods and groves and that retirement which Aper denounced, they bring such delight to me that I count among the chief enjoyments of poetry the fact that it is composed not in the midst of bustle, or with a suitor sitting before one's door, or amid the wretchedness and tears of prisoners, but that the soul withdraws herself to abodes of purity and innocence, and enjoys her holy resting-place. Here eloquence had her earliest beginnings; here is her inmost shrine. In such guise and beauty did she first charm mortals, and steal into those virgin hearts which no vice had contaminated. Oracles spoke under these conditions. As for the present money-getting and blood-stained eloquence, its use is modern, its origin in corrupt manners, and, as you said, Aper, it is a device to serve as a weapon. But the happy golden age, to speak in our own poetic fashion, knew neither orators nor accusations, while it abounded in poets and

bards, men who could sing of good deeds, but not defend evil actions. None enjoyed greater glory, or honours more august, first with the gods, whose answers they published, and at whose feasts they were present, as was commonly said, and then with the offspring of the gods and with sacred kings, among whom, so we have understood, was not a single pleader of causes, but an Orpheus, a Linus, and, if you care to dive into a remoter age, an Apollo himself. Or, if you think all this too fabulous and imaginary, at least you grant me that Homer has as much honour with posterity as Demosthenes, and that the fame of Euripides or Sophocles is bounded by a limit not narrower than that of Lysias or Hyperides. You will find in our own day more who disparage Cicero's than Virgil's glory. Nor is any production of Asinius or Messala so famous as Ovid's Medea or the Thyestes of Varius.

13

Look again at the poet's lot, with its delightful companionships. I should not be afraid of comparing it with the harassing and anxious life of the orator. Orators, it is true, have been raised to consulships by their contests and perils, but I prefer Virgil's serene, calm, and peaceful retirement, in which after all he was not without the favour of the divine Augustus, and fame among the people of Rome. We have the testimony of the letters of Augustus, the testimony too of the people themselves, who, on hearing in the theatre some of Virgil's verses, rose in a body and did homage to the poet, who happened to be present as a spectator, just as to Augustus himself. Even in our own day, Pomponius Secundus need not yield to Domitius Aper on the score of a dignified life or an enduring reputation. As for your Crispus and Marcellus, whom you hold up to me as examples, what is there in their lot to be coveted? Is it that they are in fear themselves, or are a fear to others? Is it that, while every day something is asked from them, those to whom they grant it feel indignant? Is it that, bound as they are by the chain of flattery, they are never thought servile enough by those who rule, or free enough by us? What is their power at its highest? Why, the freedmen usually have as much. For myself, as

Virgil says, let "the sweet muses" lead me to their sacred retreats, and to their fountains far away from anxieties and cares, and the necessity of doing every day something repugnant to my heart. Let me no longer tremblingly experience the madness and perils of the forum, and the pallors of fame. Let me not be aroused by a tumult of morning visitors, or a freedman's panting haste, or, anxious about the future, have to make a will to secure my wealth. Let me not possess more than what I can leave to whom I please, whenever the day appointed by my own fates shall come; and let the statue over my tomb be not gloomy and scowling, but bright and laurel-crowned. As for my memory, let there be no resolutions in the senate, or petitions to the emperor.

14

Excited and, I say, full of enthusiasm, Maternus had hardly finished when Vipstanus Messala entered his room, and, from the earnest expression on each face, he conjectured that their conversation was unusually serious. Have I, he asked, come among you unseasonably, while you are engaged in private deliberation, or the preparation of some case?

14

By no means, by no means, said Secundus. Indeed I could wish you had come sooner, for you would have been delighted with the very elaborate arguments of our friend Aper, in which he urged Maternus to apply all his ability and industry to the pleading of causes, and then too with Maternus's apology for his poems in a lively speech, which as suited a poet's defence, was uncommonly spirited, and more like poetry than oratory.

14

For my part, he replied, I should have been infinitely charmed by the discourse, and I am delighted to find that you excellent men, the orators of our age, instead of exercising your talents simply on law-business and rhetorical studies, also engage in discussions which not only strengthen the intellect but also draw from learning and from letters a pleasure most exquisite both to you who discuss such

subjects and to those too whose ears your words may reach. Hence the world, I see, is as much pleased with you, Secundus, for having by your life of Julius Asiaticus given it the promise of more such books, as it is with Aper for having not yet retired from the disputes of the schools, and for choosing to employ his leisure after the fashion of modern rhetoricians rather than of the old orators.

15

Upon this Aper replied, You still persist, Messala, in admiring only what is old and antique and in sneering at and disparaging the culture of our own day. I have often heard this sort of talk from you, when, forgetting the eloquence of yourself and your brother, you argued that nobody in this age is an orator. And you did this, I believe, with the more audacity because you were not afraid of a reputation for ill-nature, seeing that the glory which others concede to you, you deny to yourself. I feel no penitence, said Messala, for such talk, nor do I believe that Secundus or Maternus or you yourself, Aper, think differently, though now and then you argue for the opposite view. I could wish that one of you were prevailed on to investigate and describe to us the reasons of this vast difference. I often inquire into them by myself. That which consoles some minds, to me increases the difficulty. For I perceive that even with the Greeks it has happened that there is a greater distance between Aeschines and Demosthenes on the one hand, and your friend Nicetes or any other orator who shakes Ephesus or Mitylene with a chorus of rhetoricians and their noisy applause, on the other, than that which separates Afer, Africanus, or yourselves from Cicero or Asinius.

16

The question you have raised, said Secundus, is a great one and quite worthy of discussion. But who has a better claim to unravel it than yourself, you who to profound learning and transcendent ability have added reflection and study?

16

I will open my mind to you, replied Messala, if first I can prevail on you to give me your assistance in our discussion. I can answer for two of us, said Maternus; Secundus and myself will take the part which we understand you have not so much omitted as left to us. Aper usually dissents, as you have just said, and he has clearly for some time been girding himself for the attack, and cannot bear with patience our union on behalf of the merits of the ancients.

16

Assuredly, said Aper, I will not allow our age to be condemned, unheard and undefended, by this conspiracy of yours. First, however, I will ask you whom you call ancients, or what period of orators you limit by your definition? When I hear of ancients, I understand men of the past, born ages ago; I have in my eye Ulysses and Nestor, whose time is about thirteen hundred years before our day. But you bring forward Demosthenes and Hyperides who flourished, as we know, in the period of Philip and Alexander, a period, however, which they both outlived. Hence we see that not much more than four hundred years has intervened between our own era and that of Demosthenes. If you measure this space of time by the frailty of human life, it perhaps seems long; if by the course of ages and by the thought of this boundless universe, it is extremely short and is very near us. For indeed, if, as Cicero says in his Hortensius, the great and the true year is that in which the position of the heavens and of the stars at any particular moment recurs, and if that year embraces twelve thousand nine hundred and ninety four of what we call years, then your Demosthenes, whom you represent as so old and ancient, began his existence not only in the same year, but almost in the same month as ourselves.

17

But I pass to the Latin orators. Among them, it is not, I imagine, Menenius Agrippa, who may seem ancient, whom you usually prefer to the speakers of our day, but Cicero, Caelius, Calvus, Brutus, Asinius, Messala. Why you assign them to antiquity rather than to our own

times, I do not see. With respect to Cicero himself, it was in the consulship of Hirtius and Pansa, as his freedman Tiro has stated, on the 5th of December, that he was slain. In that same year the Divine Augustus elected himself and Quintus Pedius consuls in the room of Pansa and Hirtius. Fix at fifty-six years the subsequent rule of the Divine Augustus over the state; add Tiberius's three-and-twenty years, the four years or less of Caius, the twenty-eight years of Claudius and Nero, the one memorable long year of Galba, Otho, and Vitellius, and the now six years of the present happy reign, during which Vespasian has been fostering the public weal, and the result is that from Cicero's death to our day is a hundred and twenty years, one man's life-time. For I saw myself an old man in Britain who declared that he was present at the battle in which they strove to drive and beat back from their shores the arms of Cæsar when he attacked their island. So, had this man who encountered Cæsar in the field, been brought to Rome either as a prisoner, or by his own choice or by some destiny, he might have heard Cæsar himself and Cicero, and also have been present at our own speeches. At the last largess of the Emperor you saw yourselves several old men who told you that they had actually shared once and again in the gifts of the divine Augustus. Hence we infer that they might have heard both Corvinus and Asinius. Corvinus indeed lived on to the middle of the reign of Augustus, Asinius almost to its close. You must not then divide the age, and habitually describe as old and ancient orators those with whom the ears of the self-same men might have made acquaintance, and whom they might, so to say, have linked and coupled together.

18

I have made these preliminary remarks to show that any credit reflected on the age by the fame and renown of these orators is common property, and is in fact more closely connected with us than with Servius Galba or Caius Carbo, and others whom we may rightly call "ancients." These indeed are rough, unpolished, awkward, and ungainly, and I wish that your favourite Calvus or Caelius or even

Cicero had in no respect imitated them. I really mean now to deal with the subject more boldly and confidently, but I must first observe that the types and varieties of eloquence change with the age. Thus Caius Gracchus compared with the elder Cato is full and copious; Crassus compared with Gracchus is polished and ornate; Cicero compared with either is lucid, graceful, and lofty; Corvinus again is softer and sweeter and more finished in his phrases than Cicero. I do not ask who is the best speaker. Meantime I am content to have proved that eloquence has more than one face, and even in those whom you call ancients several varieties are to be discovered. Nor does it at once follow that difference implies inferiority. It is the fault of envious human nature that the old is always the object of praise, the present of contempt. Can we doubt that there were found critics who admired Appius Caecus more than Cato? We know that even Cicero was not without his disparagers, who thought him inflated, turgid, not concise enough, but unduly diffuse and luxuriant, in short anything but Attic. You have read of course the letters of Calvus and Brutus to Cicero, and from these it is easy to perceive that in Cicero's opinion Calvus was bloodless and attenuated, Brutus slovenly and lax. Cicero again was slightingly spoken of by Calvus as loose and nerveless, and by Brutus, to use his own words, as "languid and effeminate." If you ask me, I think they all said what was true. But I shall come to them separately after a while; now I have to deal with them collectively.

19

While indeed the admirers of the ancients fix as the boundary, so to say, of antiquity, the period up to Cassius Severus who was the first, they assert, to deviate from the old and plain path of the speaker, I maintain that it was not from poverty of genius or ignorance of letters that he adopted his well known style, but from preference and intellectual conviction. He saw, in fact, that, as I was just now saying, the character and type of oratory must change with the circumstances of the age and an altered taste in the popular ear. The people of the past, ignorant and uncultured as they were, patiently endured the

length of a very confused speech, and it was actually to the speaker's credit, if he took up one of their days by his speech-making. Then too they highly esteemed long preparatory introductions, narratives told from a remote beginning, a multitude of divisions ostentatiously paraded, proofs in a thousand links, and all the other directions prescribed in those driest of treatises by Hermagoras and Apollodorus. Any one who was supposed to have caught a scent of philosophy, and who introduced some philosophical commonplace into his speech, was praised up to the skies. And no wonder; for this was new and unfamiliar, and even of the orators but very few had studied the rules of rhetoricians or the dogmas of philosophers. But now that all these are common property and that there is scarce a bystander in the throng who, if not fully instructed, has not at least been initiated into the rudiments of culture, eloquence must resort to new and skilfully chosen paths, in order that the orator may avoid offence to the fastidious ear, at any rate before judges who decide by power and authority, not by law and precedent, who fix the speaker's time, instead of leaving it to himself, and, so far from thinking that they ought to wait till he chooses to speak on the matter in question, continually remind him of it and recall him to it when he wanders, protesting that they are in a hurry.

20

Who will now tolerate an advocate who begins by speaking of the feebleness of his constitution, as is usual in the openings of Corvinus? Who will sit out the five books against Verres? Who will endure those huge volumes, on a legal plea or form, which we have read in the speeches for Marcus Tullius and Aulus Caecina? In our day the judge anticipates the speaker, and unless he is charmed and imposed on by the train of arguments, or the brilliancy of the thoughts, or the grace and elegance of the descriptive sketches, he is deaf to his eloquence. Even the mob of bystanders, and the chance listeners who flock in, now usually require brightness and beauty in a speech, and they no more endure in the law-court the harshness and roughness of

antiquity, than they would an actor on the stage who chose to reproduce the gestures of Roscius or Ambivius. So again the young, those whose studies are on the anvil, who go after the orators with a view to their own progress, are anxious not merely to hear but also to carry back home some brilliant passage worthy of remembrance. They tell it one to another, and often mention it in letters to their colonies and provinces, whether it is a reflection lighted up by a neat and pithy phrase, or a passage bright with choice and poetic ornament. For we now expect from a speaker even poetic beauty, not indeed soiled with the old rust of Accius or Pacuvius, but such as is produced from the sacred treasures of Horace, Virgil, and Lucan. Thus the age of our orators, in conforming itself to the ear and the taste of such a class, has advanced in beauty and ornateness. Nor does it follow that our speeches are less successful because they bring pleasure to the ears of those who have to decide. What if you were to assume that the temples of the present day are weaker, because, instead of being built of rough blocks and ill-shaped tiles, they shine with marble and glitter with gold?

21

I will frankly admit to you that I can hardly keep from laughing at some of the ancients, and from falling asleep at others. I do not single out any of the common herd, as Canutius, or Arrius, and others in the same sick-room, so to say, who are content with mere skin and bones. Even Calvus, although he has left, I think, one-and-twenty volumes, scarcely satisfies me in one or two short speeches. The rest of the world, I see, does not differ from my opinion about him; for how few read his speeches against Asitius or Drusus! Certainly his impeachment of Vatinius, as it is entitled, is in the hands of students, especially the second of the orations. This, indeed, has a finish about the phrases and the periods, and suits the ear of the critic, whence you may infer that even Calvus understood what a better style is, but that he lacked genius and power rather than the will to speak with more dignity and grace. What again from the speeches of Caelius do

we admire? Why, we like of these the whole, or at least parts, in which we recognise the polish and elevation of our own day; but, as for those mean expressions, those gaps in the structure of the sentences, and uncouth sentiments, they savour of antiquity. No one, I suppose, is so thoroughly antique as to praise Caelius simply on the side of his antiqueness. We may, indeed, make allowance for Caius Julius Cæsar, on account of his vast schemes and many occupations, for having achieved less in eloquence than his divine genius demanded from him, and leave him indeed, just as we leave Brutus to his philosophy. Undoubtedly in his speeches he fell short of his reputation, even by the admission of his admirers. I hardly suppose that any one reads Cæsar's speech for Decius the Samnite, or that of Brutus for King Deiotarus, or other works equally dull and cold, unless it is some one who also admires their poems. For they did write poems, and sent them to libraries, with no better success than Cicero, but with better luck, because fewer people know that they wrote them.

21

Asinius too, though born in a time nearer our own, seems to have studied with the Menenii and Appii. At any rate he imitated Pacuvius and Accius, not only in his tragedies but also in his speeches; he is so harsh and dry. Style, like the human body, is then specially beautiful when, so to say, the veins are not prominent, and the bones cannot be counted, but when a healthy and sound blood fills the limbs, and shows itself in the muscles, and the very sinews become beautiful under a ruddy glow and graceful outline. I will not attack Corvinus, for it was not indeed his own fault that he did not exhibit the luxuriance and brightness of our own day. Rather let us note how far the vigour of his intellect or of his imagination satisfied his critical faculty.

22

I come now to Cicero. He had the same battle with his contemporaries which I have with you. They admired the ancients; he preferred the eloquence of his own time. It was in taste more than anything else that he was superior to the orators of that age. In fact, he was the first

who gave a finish to oratory, the first who applied a principle of selection to words, and art to composition. He tried his skill at beautiful passages, and invented certain arrangements of the sentence, at least in those speeches which he composed when old and near the close of life, that is when he had made more progress, and had learnt by practice and by many a trial, what was the best style of speaking. As for his early speeches, they are not free from the faults of antiquity. He is tedious in his introductions, lengthy in his narrations, careless about digressions; he is slow to rouse himself, and seldom warms to his subject, and only an idea here and there is brought to a fitting and a brilliant close. There is nothing which you can pick out or quote, and the style is like a rough building, the wall of which indeed is strong and lasting, but not particularly polished and bright. Now I would have an orator, like a rich and grand householder, not merely be sheltered by a roof sufficient to keep off rain and wind, but by one to delight the sight and the eye; not merely be provided with such furniture as is enough for necessary purposes, but also possess among his treasures gold and jewels, so that he may find a frequent pleasure in handling them and gazing on them. On the other hand, some things should be kept at a distance as being now obsolete and ill-savoured. There should be no phrase stained, so to speak, with rust; no ideas should be expressed in halting and languid periods after the fashion of chronicles. The orator must shun an offensive and tasteless scurrility; he must vary the structure of his sentences and not end all his clauses in one and the same way.

23

Phrases like "Fortune's wheel" and "Verrine soup," I do not care to ridicule, or that stock ending of every third clause in all Cicero's speeches, "it would seem to be," brought in as the close of a period. I have mentioned them with reluctance, omitting several, although they are the sole peculiarities admired and imitated by those who call themselves orators of the old school. I will not name any one, as I think it enough to have pointed at a class. Still, you have before your

eyes men who read Lucilius rather than Horace, and Lucretius rather than Virgil, who have a mean opinion of the eloquence of Aufidius Bassus, and Servilius Nonianus compared with that of Sisenna or Varro, and who despise and loathe the treatises of our modern rhetoricians, while those of Calvus are their admiration. When these men prose in the old style before the judges, they have neither select listeners nor a popular audience; in short the client himself hardly endures them. They are dismal and uncouth, and the very soundness of which they boast, is the result not so much of real vigour as of fasting. Even as to health of body, physicians are not satisfied with that which is attained at the cost of mental worry. It is a small matter not to be ill; I like a man to be robust and hearty and full of life. If soundness is all that you can praise him for, he is not very far from being an invalid. Be it yours, my eloquent friends, to grace our age to the best of your ability, as in fact you are doing, with the noblest style of oratory. You, Messala, imitate, I observe, the choicest beauties of the ancients. And you, Maternus and Secundus, combine charm and finish of expression with weight of thought. There is discrimination in the phrases you invent, order in the treatment of your subject, fullness, when the case demands it, conciseness, when it is possible, elegance in your style, and perspicuity in every sentence. You can express passion, and yet control an orator's licence. And so, although ill-nature and envy may have stood in the way of our good opinions, posterity will speak the truth concerning you.

24

Aper having finished speaking, Maternus said, You recognise, do you not, our friend Aper's force and passion? With what a torrent, what a rush of eloquence has he been defending our age? How full and varied was his tirade against the ancients! What ability and spirit, what learning and skill too did he show in borrowing from the very men themselves the weapons with which he forthwith proceeded to attack them! Still, as to your promise, Messala, there must for all this be no change. We neither want a defence of the ancients, nor do we compare

any of ourselves, though we have just heard our own praises, with those whom Aper has denounced. Aper himself thinks otherwise; he merely followed an old practice much in vogue with your philosophical school of assuming the part of an opponent. Give us then not a panegyric on the ancients (their own fame is a sufficient panegyric) but tell us plainly the reasons why with us there has been such a falling off from their eloquence, the more marked as dates have proved that from the death of Cicero to this present day is but a hundred and twenty years.

25

Messala replied, I will take the line you have prescribed for me. Certainly I need not argue long against Aper, who began by raising what I think a controversy about a name, implying that it is not correct to call ancients those whom we all know to have lived a hundred years ago. I am not fighting about a word. Let him call them ancients or elders or any other name he prefers, provided only we have the admission that the eloquence of that age exceeded ours. If again he freely admits that even in the same, much more in different periods, there were many varieties of oratory, against this part too of his argument I say nothing. I maintain, however, that just as among Attic orators we give the first place to Demosthenes and assign the next to Aeschines, Hyperides, Lysias and Lycurgus, while all agree in regarding this as pre-eminently the age of speakers, so among ourselves Cicero indeed was superior to all the eloquent men of his day, though Calvus, Asinius, Cæsar, Caelius, and Brutus may claim the right of being preferred to those who preceded and who followed them. It matters nothing that they differ in special points, seeing that they are generically alike. Calvus is the more terse, Asinius has the finer rhythm, Cæsar greater brilliancy, Caelius is the more caustic, Brutus the more earnest, Cicero the more impassioned, the richer and more forcible. Still about them all there is the same healthy tone of eloquence. Take into your hand the works of all alike and you see that amid wide differences of genius, there is a resemblance and affinity of

intellect and moral purpose. Grant that they disparaged each other (and certainly there are some passages in their letters which show mutual ill-will), still this is the failing, not of the orator, but of the man. Calvus, Asinius, Cicero himself, I presume, were apt to be envious and ill-natured, and to have the other faults of human infirmity. Brutus alone of the number in my opinion laid open the convictions of his heart frankly and ingenuously, without ill-will or envy. Is it possible that he envied Cicero, when he seems not to have envied even Cæsar? As to Servius Galba, and Caius Laelius, and others of the ancients whom Aper has persistently assailed, he must not expect me to defend them, for I admit that their eloquence, being yet in its infancy and imperfectly developed, had certain defects.

26

After all, if I must put on one side the highest and most perfect type of eloquence and select a style, I should certainly prefer the vehemence of Caius Gracchus or the sobriety of Lucius Crassus to the curls of Maecenas or the jingles of Gallio: so much better is it for an orator to wear a rough dress than to glitter in many-coloured and meretricious attire. Indeed, neither for an orator or even a man is that style becoming which is adopted by many of the speakers of our age, and which, with its idle redundancy of words, its meaningless periods and licence of expression, imitates the art of the actor. Shocking as it ought to be to our ears it is a fact that fame, glory, and genius are sacrificed by many to the boast that their compositions are given with the tones of the singer, the gestures of the dancer. Hence the exclamation, which, though often heard, is a shame and an absurdity, that our orators speak prettily and our actors dance eloquently. For myself I would not deny that Cassius Severus, the only speaker whom Aper ventured to name, may, if compared with his successors, be called an orator, although in many of his works he shows more violence than vigour. The first to despise arrangement, to cast off propriety and delicacy of expression, confused by the very weapons he employs, and often stumbling in his eagerness to strike, he

wrangles rather than fights. Still, as I have said, compared with his successors, he is far superior to all in the variety of his learning, the charm of his wit, and the solidity of his very strength. Not one of them has Aper had the courage to mention, and, so to say, to bring into the field. When he had censured Asinius, Caelius, and Calvus, I expected that he would show us a host of others, and name more, or at least as many who might be pitted man by man against Cicero, Cæsar, and the rest. As it is, he has contented himself with singling out for disparagement some ancient orators, and has not dared to praise any of their successors, except generally and in terms common to all, fearing, I suppose, that he would offend many, if he selected a few. For there is scarce one of our rhetoricians who does not rejoice in his conviction that he is to be ranked before Cicero, but unquestionably second to Gabinianus.

27

For my own part I shall not scruple to mention men by name, that, with examples before us, we may the more easily perceive the successive steps of the ruin and decay of eloquence.

27

Maternus here interrupted him. Rather prepare yourself to fulfil your promise. We do not want proof of the superior eloquence of the ancients; as far as I am concerned, it is admitted. We are inquiring into the causes, and these you told us but now you had been in the habit of discussing, when you were less excited and were not raving against the eloquence of our age, just before Aper offended you by attacking your ancestors.

27

I was not offended, replied Messala, by our friend Aper's argument, nor again will you have a right to be offended, if any remark of mine happens to grate on your ears, for you know that it is a rule in these discussions that we may speak out our convictions without impairing mutual good-will.

27

Proceed, said Maternus. As you are speaking of the ancients, avail yourself of ancient freedom, from which we have fallen away even yet more than from eloquence.

28

Messala continued. Far from obscure are the causes which you seek. Neither to yourself or to our friends, Secundus and Aper, are they unknown, though you assign me the part of speaking out before you what we all think. Who does not know that eloquence and all other arts have declined from their ancient glory, not from dearth of men, but from the indolence of the young, the carelessness of parents, the ignorance of teachers, and neglect of the old discipline? The evils which first began in Rome soon spread through Italy, and are now diffusing themselves into the provinces. But your provincial affairs are best known to yourselves. I shall speak of Rome, and of those native and home-bred vices which take hold of us as soon as we are born, and multiply with every stage of life, when I have first said a few words on the strict discipline of our ancestors in the education and training of children. Every citizen's son, the child of a chaste mother, was from the beginning reared, not in the chamber of a purchased nurse, but in that mother's bosom and embrace, and it was her special glory to study her home and devote herself to her children. It was usual to select an elderly kinswoman of approved and esteemed character to have the entire charge of all the children of the household. In her presence it was the last offence to utter an unseemly word or to do a disgraceful act. With scrupulous piety and modesty she regulated not only the boy's studies and occupations, but even his recreations and games. Thus it was, as tradition says, that the mothers of the Gracchi, of Cæsar, of Augustus, Cornelia, Aurelia, Atia, directed their children's education and reared the greatest of sons. The strictness of the discipline tended to form in each case a pure and virtuous nature which no vices could warp, and which would at once with the whole heart seize on every noble lesson. Whatever its bias, whether to the

soldier's or the lawyer's art, or to the study of eloquence, it would make that its sole aim, and imbibe it in its fullness.

29

But in our day we entrust the infant to a little Greek servant-girl who is attended by one or two, commonly the worst of all the slaves, creatures utterly unfit for any important work. Their stories and their prejudices from the very first fill the child's tender and uninstructed mind. No one in the whole house cares what he says or does before his infant master. Even parents themselves familiarise their little ones, not with virtue and modesty, but with jesting and glib talk, which lead on by degrees to shamelessness and to contempt for themselves as well as for others. Really I think that the characteristic and peculiar vices of this city, a liking for actors and a passion for gladiators and horses, are all but conceived in the mother's womb. When these occupy and possess the mind, how little room has it left for worthy attainments! Few indeed are to be found who talk of any other subjects in their homes, and whenever we enter a classroom, what else is the conversation of the youths. Even with the teachers, these are the more frequent topics of talk with their scholars. In fact, they draw pupils, not by strictness of discipline or by giving proof of ability, but by assiduous court and cunning tricks of flattery.

30

I say nothing about the learners' first rudiments. Even with these little pains are taken, and on the reading of authors, on the study of antiquity and a knowledge of facts, of men and of periods, by no means enough labour is bestowed. It is rhetoricians, as they are called, who are in request. When this profession was first introduced into our city, and how little esteem it had among our ancestors, I am now about to explain; but I will first recall your attention to the training which we have been told was practised by those orators whose infinite industry, daily study and incessant application to every branch of learning are seen in the contents of their own books. You are doubtless familiar with Cicero's book, called Brutus. In the latter part

of it (the first gives an account of the ancient orators) he relates his own beginnings, his progress, and the growth, so to say, of his eloquence. He tells us that he learnt the civil law under Quintus Mucius, and that he thoroughly imbibed every branch of philosophy under Philo of the Academy and under Diodotus the Stoic; that not content with the teachers under whom he had had the opportunity of studying at Rome, he travelled through Achaia and Asia Minor so as to embrace every variety of every learned pursuit. Hence we really find in Cicero's works that he was not deficient in the knowledge of geometry, music, grammar, or, in short, any liberal accomplishment. The subtleties of logic, the useful lessons of ethical science, the movements and causes of the universe, were alike known to him. The truth indeed is this, my excellent friends, that Cicero's wonderful eloquence wells up and overflows out of a store of erudition, a multitude of accomplishments, and a knowledge that was universal. The strength and power of oratory, unlike all other arts, is not confined within narrow and straitened limits, but the orator is he who can speak on every question with grace, elegance, and persuasiveness, suitably to the dignity of his subject, the requirements of the occasion, and the taste of his audience.

31

Such was the conviction of the ancients, and to produce this result they were aware that it was necessary not only to declaim in the schools of rhetoricians, or to exercise the tongue and the voice in fictitious controversies quite remote from reality, but also to imbue the mind with those studies which treat of good and evil, of honour and dishonour, of right and wrong. All this, indeed, is the subject-matter of the orator's speeches. Equity in the law-court, honour in the council-chamber, are our usual topics of discussion. Still, these often pass into each other, and no one can speak on them with fulness, variety, and elegance but he who has studied human nature, the power of virtue, the depravity of vice, and the conception of those things which can be classed neither among virtues nor vices. These

are the sources whence flows the greater ease with which he who knows what anger is, rouses or soothes the anger of a judge, the readier power with which he moves to pity who knows what pity is, and what emotions of the soul excite it. An orator practised in such arts and exercises, whether he has to address the angry, the biassed, the envious, the sorrowful, or the trembling, will understand different mental conditions, apply his skill, adapt his style, and have every instrument of his craft in readiness, or in reserve for every occasion. Some there are whose assent is more secured by an incisive and terse style, in which each inference is rapidly drawn. With such, it will be an advantage to have studied logic. Others are more attracted by a diffuse and smoothly flowing speech, appealing to the common sentiments of humanity. To impress such we must borrow from the Peripatetics commonplaces suited and ready prepared for every discussion. The Academy will give us combativeness, Plato, sublimity, Xenophon, sweetness. Nor will it be unseemly in an orator to adopt even certain exclamations of honest emotion, from Epicurus and Metrodorus, and to use them as occasion requires. It is not a philosopher after the Stoic school whom we are forming, but one who ought to imbibe thoroughly some studies, and to have a taste of all. Accordingly, knowledge of the civil law was included in the training of the ancient orators, and they also imbued their minds with grammar, music, and geometry. In truth, in very many, I may say in all cases, acquaintance with law is desirable, and in several this last-mentioned knowledge is a necessity.

32

Let no one reply that it is enough for us to learn, as occasion requires, some single and detached subject. In the first place we use our own property in one way, a loan in another, and there is evidently a wide difference between possessing what one exhibits and borrowing it. Next, the very knowledge of many subjects sits gracefully on us, even when we are otherwise engaged, and makes itself visible and conspicuous where you would least expect it. Even the average citizen,

and not only the learned and critical hearer, perceives it, and forthwith showers his praises in the acknowledgment that the man has been a genuine student, has gone through every branch of eloquence, and is, in short, an orator. And I maintain that the only orator is, and ever has been, one who, like a soldier equipped at all points going to the battle-field, enters the forum armed with every learned accomplishment.

32

All this is so neglected by the speakers of our time that we detect in their pleadings the style of every-day conversation, and unseemly and shameful deficiencies. They are ignorant of the laws, they do not understand the senate's decrees, they actually scoff at the civil law, while they quite dread the study of philosophy, and the opinions of the learned; and eloquence, banished, so to say, from her proper realm, is dragged down by them into utter poverty of thought and constrained periods. Thus she who, once mistress of all the arts, held sway with a glorious retinue over our souls, now clipped and shorn, without state, without honour, I had almost said without her freedom, is studied as one of the meanest handicrafts. This then I believe to be the first and chief cause of so marked a falling off among us from the eloquence of the old orators. If witnesses are wanted, whom shall I name in preference to Demosthenes among the Greeks, who is said by tradition to have been a most attentive hearer of Plato? Cicero too tells us, I think, in these very words, that whatever he had achieved in eloquence he had gained, not from rhetoricians, but in the walks of the Academy. There are other causes, some of them great and important, which it is for you in fairness to explain, as I have now done my part, and, after my usual way, have offended pretty many persons who, if they happen to hear all this, will, I am sure, say that, in praising an acquaintance with law and philosophy as a necessity for an orator, I have been applauding my own follies.

33

For myself, replied Maternus, I do not think that you have completed the task which you undertook. Far from it. You have, I think, only made a beginning, and indicated, so to say, its traces and outlines. You have indeed described to us the usual equipment of the ancient orators, and pointed out the contrast presented by our idleness and ignorance to their very diligent and fruitful studies. I want to hear the rest. Having learnt from you what they knew, with which we are unacquainted, I wish also to be told the process of training by which, when mere lads, and when about to enter the forum, they used to strengthen and nourish their intellects. For you will not, I imagine, deny that eloquence depends much less on art and theory than on capacity and practice, and our friends here seem by their looks to think the same.

33

Aper and Secundus having assented, Messala, so to say, began afresh. As I have, it seems, explained to your satisfaction the first elements and the germs of ancient eloquence in showing you the studies in which the orator of antiquity was formed and educated, I will now discuss the process of his training. However, even the studies themselves involve a training, and no one can acquire such profound and varied knowledge without adding practice to theory, fluency to practice, and eloquence itself to fluency. Hence we infer that the method of acquiring what you mean to produce publicly, and of so producing what you have acquired, is one and the same. Still, if any one thinks this somewhat obscure, and distinguishes broadly between theory and practice, he will at least allow that a mind thoroughly furnished and imbued with such studies will enter with a far better preparation on the kinds of practice which seem specially appropriate to the orator.

34

It was accordingly usual with our ancestors, when a lad was being prepared for public speaking, as soon as he was fully trained by home discipline, and his mind was stored with culture, to have him taken by

his father, or his relatives to the orator who held the highest rank in the state. The boy used to accompany and attend him, and be present at all his speeches, alike in the law-court and the assembly, and thus he picked up the art of repartee, and became habituated to the strife of words, and indeed, I may almost say, learnt how to fight in battle. Thereby young men acquired from the first great experience and confidence, and a very large stock of discrimination, for they were studying in broad daylight, in the very thick of the conflict, where no one can say anything foolish or self-contradictory without its being refuted by the judge, or ridiculed by the opponent, or, last of all, repudiated by the very counsel with him. Thus from the beginning they were imbued with true and genuine eloquence, and, although they attached themselves to one pleader, still they became acquainted with all advocates of their own standing in a multitude of cases before the courts. They had too abundant experience of the popular ear in all its greatest varieties, and with this they could easily ascertain what was liked or disapproved in each speaker. Thus they were not in want of a teacher of the very best and choicest kind, who could show them eloquence in her true features, not in a mere resemblance; nor did they lack opponents and rivals, who fought with actual steel, not with a wooden sword, and the audience too was always crowded, always changing, made up of unfriendly as well as of admiring critics, so that neither success nor failure could be disguised. You know, of course, that eloquence wins its great and enduring fame quite as much from the benches of our opponents as from those of our friends; nay, more, its rise from that quarter is steadier, and its growth surer. Undoubtedly it was under such teachers that the youth of whom I am speaking, the disciple of orators, the listener in the forum, the student in the law-courts, was trained and practised by the experiences of others. The laws he learnt by daily hearing; the faces of the judges were familiar to him; the ways of popular assemblies were continually before his eyes; he had frequent experience of the ear of the people, and whether he undertook a prosecution or a defence, he was at once

singly and alone equal to any case. We still read with admiration the speeches in which Lucius Crassus in his nineteenth, Cæsar and Asinius Pollio in their twenty-first year, Calvus, when very little older, denounced, respectively, Carbo, Dolabella, Cato, and Vatinius.

35

But in these days we have our youths taken to the professors' theatre, the rhetoricians, as we call them. The class made its appearance a little before Cicero's time, and was not liked by our ancestors, as is evident from the fact that, when Crassus and Domitius were censors, they were ordered, as Cicero says, to close "the school of impudence." However, as I was just saying, the boys are taken to schools in which it is hard to tell whether the place itself, or their fellow-scholars, or the character of their studies, do their minds most harm. As for the place, there is no such thing as reverence, for no one enters it who is not as ignorant as the rest. As for the scholars, there can be no improvement, when boys and striplings with equal assurance address, and are addressed by, other boys and striplings. As for the mental exercises themselves, they are the reverse of beneficial. Two kinds of subject-matter are dealt with before the rhetoricians, the persuasive and the controversial. The persuasive, as being comparatively easy and requiring less skill, is given to boys. The controversial is assigned to riper scholars, and, good heavens! what strange and astonishing productions are the result! It comes to pass that subjects remote from all reality are actually used for declamation. Thus the reward of a tyrannicide, or the choice of an outraged maiden, or a remedy for a pestilence, or a mother's incest, anything, in short, daily discussed in our schools, never, or but very rarely in the courts, is dwelt on in grand language.

36

Great eloquence, like fire, grows with its material; it becomes fiercer with movement, and brighter as it burns. On this same principle was developed in our state too the eloquence of antiquity. Although even the modern orator has attained all that the circumstances of a settled,

quiet, and prosperous community allow, still in the disorder and licence of the past more seemed to be within the reach of the speaker, when, amid a universal confusion that needed one guiding hand, he exactly adapted his wisdom to the bewildered people's capacity of conviction. Hence, laws without end and consequent popularity; hence, speeches of magistrates who, I may say, passed nights on the Rostra; hence, prosecutions of influential citizens brought to trial, and feuds transmitted to whole families; hence, factions among the nobles, and incessant strife between the senate and the people. In each case the state was torn asunder, but the eloquence of the age was exercised, and, as it seemed, was loaded with great rewards. For the more powerful a man was as a speaker, the more easily did he obtain office, the more decisively superior was he to his colleagues in office, the more influence did he acquire with the leaders of the state, the more weight in the senate, the more notoriety and fame with the people. Such men had a host of clients, even among foreign nations; the magistrates, when leaving Rome for the provinces, showed them respect, and courted their favour as soon as they returned. The prætorship and the consulship seemed to offer themselves to them, and even when they were out of office, they were not out of power, for they swayed both people and senate with their counsels and influence. Indeed, they had quite convinced themselves that without eloquence no one could win or retain a distinguished and eminent position in the state. And no wonder. Even against their own wish they had to show themselves before the people. It was little good for them to give a brief vote in the senate without supporting their opinion with ability and eloquence. If brought into popular odium, or under some charge, they had to reply in their own words. Again, they were under the necessity of giving evidence in the public courts, not in their absence by affidavit, but of being present and of speaking it openly. There was thus a strong stimulus to win the great prizes of eloquence, and as the reputation of a good speaker was considered an honour and a glory, so it was thought a disgrace to seem mute and

speechless. Shame therefore quite as much as hope of reward prompted men not to take the place of a pitiful client rather than that of a patron, or to see hereditary connections transferred to others, or to seem spiritless and incapable of office from either failing to obtain it or from holding it weakly when obtained.

37

Perhaps you have had in your hands the old records, still to be found in the libraries of antiquaries, which Mucianus is just now collecting, and which have already been brought together and published in, I think, eleven books of Transactions, and three of Letters. From these we may gather that Cneius Pompeius and Marcus Crassus rose to power as much by force of intellect and by speaking as by their might in arms; that the Lentuli, Metelli, Luculli, and Curios, and the rest of our nobles, bestowed great labour and pains on these studies, and that, in fact, no one in those days acquired much influence without some eloquence. We must consider too the eminence of the men accused, and the vast issues involved. These of themselves do very much for eloquence. There is, indeed, a wide difference between having to speak on a theft, a technical point, a judicial decision, and on bribery at elections, the plundering of the allies, and the massacre of citizens. Though it is better that these evils should not befall us, and the best condition of the state is that in which we are spared such sufferings, still, when they did occur, they supplied a grand material for the orator. His mental powers rise with the dignity of his subject, and no one can produce a noble and brilliant speech unless he has got an adequate case. Demosthenes, I take it, does not owe his fame to his speeches against his guardians, and it is not his defence of Publius Quintius, or of Licinius Archias, which make Cicero a great orator; it is his Catiline, his Milo, his Verres, and Antonius, which have shed over him this lustre. Not indeed that it was worth the state's while to endure bad citizens that orators might have plenty of matter for their speeches, but, as I now and then remind you, we must remember the point, and understand that we are speaking of an art which arose

more easily in stormy and unquiet times. Who knows not that it is better and more profitable to enjoy peace than to be harassed by war? Yet war produces more good soldiers than peace. Eloquence is on the same footing. The oftener she has stood, so to say, in the battle-field, the more wounds she has inflicted and received, the mightier her antagonist, the sharper the conflicts she has freely chosen, the higher and more splendid has been her rise, and ennobled by these contests she lives in the praises of mankind.

38

I pass now to the forms and character of procedure in the old courts. As they exist now, they are indeed more favourable to truth, but the forum in those days was a better training for eloquence. There no speaker was under the necessity of concluding within a very few hours; there was freedom of adjournment, and every one fixed for himself the limits of his speech, and there was no prescribed number of days or of counsel. It was Cneius Pompeius who, in his third consulship, first restricted all this, and put a bridle, so to say, on eloquence, intending, however, that all business should be transacted in the forum according to law, and before the prætors. Here is a stronger proof of the greater importance of the cases tried before these judges than in the fact that causes in the Court of the Hundred, causes which now hold the first place, were then so eclipsed by the fame of other trials that not a speech of Cicero, or Cæsar, or Brutus, or Caelius, or Calvus, or, in short, any great orator is now read, that was delivered in that Court, except only the orations of Asinius Pollio for the heirs of Urbinia, as they are entitled, and even Pollio delivered these in the middle of the reign of Augustus, a period of long rest, of unbroken repose for the people and tranquillity for the senate, when the emperor's perfect discipline had put its restraints on eloquence as well as on all else.

39

Perhaps what I am going to say will be thought trifling and ridiculous; but I will say it even to be laughed at. What contempt (so I think at

least) has been brought on eloquence by those little overcoats into which we squeeze, and, so to say, box ourselves up, when we chat with the judges! How much force may we suppose has been taken from our speeches by the little rooms and offices in which nearly all cases have to be set forth. Just as a spacious course tests a fine horse, so the orator has his field, and unless he can move in it freely and at ease, his eloquence grows feeble and breaks down. Nay more; we find the pains and labour of careful composition out of place, for the judge keeps asking when you are going to open the case, and you must begin from his question. Frequently he imposes silence on the advocate to hear proofs and witnesses. Meanwhile only one or two persons stand by you as you are speaking and the whole business is transacted almost in solitude. But the orator wants shouts and applause, and something like a theatre, all which and the like were the every day lot of the orators of antiquity, when both numbers and nobility pressed into the forum, when gatherings of clients and the people in their tribes and deputations from the towns and indeed a great part of Italy stood by the accused in his peril, and Rome's citizens felt in a multitude of trials that they themselves had an interest in the decision. We know that there was a universal rush of the people to hear the accusation and the defence of Cornelius, Scaurus, Milo, Bestia, and Vatinius, so that even the coldest speaker might have been stirred and kindled by the mere enthusiasm of the citizens in their strife. And therefore indeed such pleadings are still extant, and thus the men too who pleaded, owe their fame to no other speeches more than these.

40

Again, what stimulus to genius and what fire to the orator was furnished by incessant popular assemblies, by the privilege of attacking the most influential men, and by the very glory of such feuds when most of the good speakers did not spare even a Publius Scipio, or a Sulla, or a Cneius Pompeius, and following the common impulse of envy availed themselves of the popular ear for invective against eminent citizens. I am not speaking of a quiet and peaceful

accomplishment, which delights in what is virtuous and well regulated. No; the great and famous eloquence of old is the nursling of the licence which fools called freedom; it is the companion of sedition, the stimulant of an unruly people, a stranger to obedience and subjection, a defiant, reckless, presumptuous thing which does not show itself in a well-governed state. What orator have we ever heard of at Sparta or at Crete? A very strict discipline and very strict laws prevailed, tradition says, in both those states. Nor do we know of the existence of eloquence among the Macedonians or Persians, or in any people content with a settled government. There were some orators at Rhodes and a host of them at Athens, but there the people, there any ignorant fellow, anybody, in short, could do anything. So too our own state, while it went astray and wore out its strength in factious strife and discord, with neither peace in the forum, unity in the senate, order in the courts, respect for merit, or seemly behaviour in the magistrates, produced beyond all question a more vigorous eloquence, just as an untilled field yields certain herbage in special plenty. Still the eloquence of the Gracchi was not an equivalent to Rome for having to endure their legislation, and Cicero's fame as an orator was a poor compensation for the death he died.

41

And so now the forum, which is all that our speakers have left them of antiquity, is an evidence of a state not thoroughly reformed or as orderly as we could wish. Who but the guilty or unfortunate apply to us? What town puts itself under our protection but one harassed by its neighbours or by strife at home? When we plead for a province is it not one that has been plundered and ill-treated? Surely it would be better not to complain than to have to seek redress. Could a community be found in which no one did wrong, an orator would be as superfluous among its innocent people as a physician among the healthy. As the healing art is of very little use and makes very little progress in nations which enjoy particularly robust constitutions and vigorous frames, so the orator gets an inferior and less splendid

renown where a sound morality and willing obedience to authority prevail. What need there of long speeches in the senate, when the best men are soon of one mind, or of endless harangues to the people, when political questions are decided not by an ignorant multitude, but by one man of pre-eminent wisdom? What need of voluntary prosecutions, when crimes are so rare and slight, or of defences full of spiteful insinuation and exceeding proper bounds, when the clemency of the judge offers itself to the accused in his peril?

41

Be assured, my most excellent, and, as far as the age requires, most eloquent friends, that had you been born in the past, and the men we admire in our own day, had some god in fact suddenly changed your lives and your age, the highest fame and glory of eloquence would have been yours, and they too would not have lacked moderation and self-control. As it is, seeing that no one can at the same time enjoy great renown and great tranquillity, let everybody make the best of the blessings of his own age without disparaging other periods.

42

Maternus had now finished. There were, replied Messala, some points I should controvert, some on which I should like to hear more, if the day were not almost spent. It shall be, said Maternus, as you wish, on a future occasion, and anything you have thought obscure in my argument, we will again discuss. Then he rose and embraced Aper. I mean, he said, to accuse you before the poets, and so will Messala before the antiquarians. And I, rejoined Aper, will accuse you before the rhetoricians and professors.

42

They laughed good-humouredly, and we parted.